ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: 282459
NAME: Mary Arens McBride, Esq.
FIRM NAME: ERSKINE LAW GROUP, APC
STREET ADDRESS: 1592 N. Batavia Street, Suite 1A
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ATTORNEY FOR *(name)*: GENERAL MOTORS LLC

FOR COURT USE ONLY

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
10/29/2024
Clerk of the Court
BY: DANIEL DIAZ
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 McAllister Street
MAILING ADDRESS:
CITY AND ZIP CODE: San Francisco, CA 94102-4515
BRANCH NAME: CIVIC CENTER COURTHOUSE

PLAINTIFF/PETITIONER: GREGORIO GARCIA
DEFENDANT/RESPONDENT: GENERAL MOTORS LLC

CASE MANAGEMENT STATEMENT

CASE NUMBER: CGC-24-614473

(Check one): [x] **UNLIMITED CASE** (Amount demanded exceeds $35,000) [ ] **LIMITED CASE** (Amount demanded is $35,000 or less)

A **CASE MANAGEMENT CONFERENCE** is scheduled as follows:
Date: 11/13/2024 Time: 10:30 a.m. Dept.: 610 Div.: Room:

Address of court *(if different from the address above)*:

[x] **Notice of Intent to Appear by Telephone, by *(name)*:** Mary Arens McBride,Esq

INSTRUCTIONS: All applicable boxes must be checked, and the specified information must be provided.

1. **Party or parties** *(answer one)*:
   a. [x] This statement is submitted by party *(name)*: General Motors LLC
   b. [ ] This statement is submitted **jointly** by parties *(names)*:
2. **Complaint and cross-complaint** *(to be answered by plaintiffs and cross-complainants only)*
   a. The complaint was filed on *(date)*:
   b. [ ] The cross-complaint, if any, was filed on *(date)*:
3. **Service** *(to be answered by plaintiffs and cross-complainants only)*
   a. [ ] All parties named in the complaint and cross-complaint have been served, have appeared, or have been dismissed.
   b. [ ] The following parties named in the complaint or cross-complaint
      (1) [ ] have not been served *(specify names and explain why not)*:
      (2) [ ] have been served but have not appeared and have not been dismissed *(specify names)*:
      (3) [ ] have had a default entered against them *(specify names)*:
   c. [ ] The following additional parties may be added *(specify names, nature of involvement in case, and date by which they may be served)*:
4. **Description of case**
   a. Type of case in [x] complaint [ ] cross-complaint *(Describe, including causes of action)*:

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4. b. Provide a brief statement of the case, including any damages *(if personal injury damages are sought, specify the injury and damages claimed, including medical expenses to date [indicate source and amount], estimated future medical expenses, lost earnings to date, and estimated future lost earnings; if equitable relief is sought, describe the nature of the relief):*
This is a "lemon law" action involving a 2019 GMC Sierra with various alleged defects. Plaintiff(s) alleges that these defects substantially impair the use, value and safety of the vehicle. Plaintiff(s) seeks restitution, rescission, incidental damages, consequential damages, civil penalties and attorney's fees and costs.

☐ *(If more space is needed, check this box and attach a page designated as Attachment 4b.)*

5. **Jury or nonjury trial**
The party or parties request ☒ a jury trial ☐ a nonjury trial. *(If more than one party, provide the name of each party requesting a jury trial):*

6. **Trial date**
a. ☐ The trial has been set for *(date):*
b. ☒ No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint *(if not, explain):*

c. Dates on which parties or attorneys will not be available for trial *(specify dates and explain reasons for unavailability):*

7. **Estimated length of trial**
The party or parties estimate that the trial will take *(check one)*
a. ☒ days *(specify number):* 5-7
b. ☐ hours (short causes) *(specify):*

8. **Trial representation** *(to be answered for each party)*
The party or parties will be represented at trial ☒ by the attorney or party listed in the caption ☐ by the following:
a. Attorney:
b. Firm:
c. Address:
d. Telephone number:
e. Email address:
f. Fax number:
g. Party represented:
☐ Additional representation is described in Attachment 8.

9. **Preference**
☐ This case is entitled to preference *(specify code section):*

10. **Alternative dispute resolution (ADR)**
a. **ADR information package.** Please note that different ADR processes are available in different courts and communities; read the ADR information package provided by the court under rule 3.221 of the California Rules of Court for information about the processes available through the court and community programs in this case.
(1) For parties represented by counsel: Counsel ☒ has ☐ has not provided the ADR information package identified in rule 3.221 to the client and reviewed ADR options with the client.
(2) For self-represented parties: Party ☐ has ☐ has not reviewed the ADR information package identified in rule 3.221.
b. **Referral to judicial arbitration or civil action mediation** (if available).
(1) ☐ This matter is subject to mandatory judicial arbitration under Code of Civil Procedure section 1141.11 or to civil action mediation under Code of Civil Procedure section 1775.3 because the amount in controversy does not exceed the statutory limit.
(2) ☐ Plaintiff elects to refer this case to judicial arbitration and agrees to limit recovery to the amount specified in Code of Civil Procedure section 1141.11.
(3) ☐ This case is exempt from judicial arbitration under rule 3.811 of the California Rules of Court or from civil action mediation under Code of Civil Procedure section 1775 et seq. *(specify exemption):*

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10. c. In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in *(check all that apply and provide the specified information):*

	The party or parties completing this form **are willing** to participate in the following ADR processes *(check all that apply):*	If the party or parties completing this form in the case **have agreed** to participate in or have already completed an ADR process or processes, indicate the status of the processes *(attach a copy of the parties' ADR stipulation):*
(1) Mediation	[x]	[x] Mediation session not yet scheduled [ ] Mediation session scheduled for (*date*)*:* [ ] Agreed to complete mediation by (*date*)*:* [ ] Mediation completed on (*date*)*:*
(2) Settlement conference	[x]	[x] Settlement conference not yet scheduled [ ] Settlement conference scheduled for (*date*)*:* [ ] Agreed to complete settlement conference by(*date*)*:* [ ] Settlement conference completed on(*date*)*:*
(3) Neutral evaluation	[ ]	[ ] Neutral evaluation not yet scheduled [ ] Neutral evaluation scheduled for (*date*)*:* [ ] Agreed to complete neutral evaluation by (*date*)*:* [ ] Neutral evaluation completed on (*date*)*:*
(4) Nonbinding judicial arbitration	[ ]	[ ] Judicial arbitration not yet scheduled [ ] Judicial arbitration scheduled for (*date*)*:* [ ] Agreed to complete judicial arbitration by (*date*)*:* [ ] Judicial arbitration completed on (*date*)*:*
(5) Binding private arbitration	[ ]	[ ] Private arbitration not yet scheduled [ ] Private arbitration scheduled for (*date*)*:* [ ] Agreed to complete private arbitration by (*date*)*:* [ ] Private arbitration completed on (*date*)*:*
(6) Other (*specify*):	[ ]	[ ] ADR session not yet scheduled [ ] ADR session scheduled for (*date*)*:* [ ] Agreed to complete ADR session by (*date*)*:* [ ] ADR completed on (*date*)*:*

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11. **Insurance**

a. [ ] Insurance carrier, if any, for party filing this statement *(name):*

b. Reservation of rights: [ ] Yes [ ] No

c. [ ] Coverage issues will significantly affect resolution of this case *(explain):*

12. **Jurisdiction**

Indicate any matters that may affect the court's jurisdiction or processing of this case and describe the status.

[ ] Bankruptcy [ ] Other *(specify):*

Status:

13. **Related cases, consolidation, and coordination**

a. [ ] There are companion, underlying, or related cases.

(1) Name of case:

(2) Name of court:

(3) Case number:

(4) Status:

[ ] Additional cases are described in Attachment 13a.

b. [ ] A motion to [ ] consolidate [ ] coordinate will be filed by *(name party):*

14. **Bifurcation**

[x] The party or parties intend to file a motion for an order bifurcating, severing, or coordinating the following issues or causes of action *(specify moving party, type of motion, and reasons):*

15. **Other motions**

[x] The party or parties expect to file the following motions before trial *(specify moving party, type of motion, and issues):*

16. **Discovery**

a. [ ] The party or parties have completed all discovery.

b. [x] The following discovery will be completed by the date specified *(describe all anticipated discovery):*

Party	Description	Date
Defendant	Vehicle Inspection	MAY 2025
Defendant	Remote Deposition of Plaintiff	MAY 2025
Defendant	Remote Deposition of Plaintiff's Expert(s)	MAY 2025

c. [ ] The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated *(specify):*

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17. **Economic litigation**

a. [ ] This is a limited civil case (i.e., the amount demanded is $35,000 or less) and the economic litigation procedures in Code of Civil Procedure sections 90-98 will apply to this case.

b. [ ] This is a limited civil case and a motion to withdraw the case from the economic litigation procedures or for additional discovery will be filed *(if checked, explain specifically why economic litigation procedures relating to discovery or trial should not apply to this case):*

18. **Other issues**

[ ] The party or parties request that the following additional matters be considered or determined at the case management conference *(specify):*

19. **Meet and confer**

a. [x] The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court *(if not, explain):*
At the time of filing the CMS, the parties have not met and conferred; however, they intend to do so before the Case Management Conference.

b. [x] After meeting and conferring as required by rule 3.724 of the California Rules of Court, the parties agree on the following *(specify):*
The parties are amenable to private mediation and anticipate the court to set a trial date at the case management conference.

20. Total number of pages attached *(if any):* _____

I am completely familiar with this case and will be fully prepared to discuss the status of discovery and alternative dispute resolution, as well as other issues raised by this statement, and will possess the authority to enter into stipulations on these issues at the time of the case management conference, including the written authority of the party where required.

Date: October 29, 2024

Mary Arens McBride
(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

[ ] Additional signatures are attached.

PROOF OF SERVICE

I am employed in the County of Orange and my business address is 1592 N. Batavia St., Suite 1A, Orange, CA 92867. I am over the age of 18 years and I am not a party to this action. I am readily familiar with the practices of THE ERSKINE LAW GROUP, PC for the collection and processing of correspondence for mailing with the United States Postal Service. Such correspondence is deposited with the United States Postal Service the same day in the ordinary course of business.

On October 29, 2024 I served the foregoing document(s), bearing the title(s):

DEFENDANT'S GENERAL MOTORS LLC CASE MANAGEMENT CONFERENCE

on the interested parties in the action as follows:

[X] by placing [] the original [X] a true copy thereof enclosed in a sealed envelope addressed as follows:

Counsel for Plaintiff(s),

Quill & Arrow
e-service@quillarrowlaw.com

[] (**BY MAIL SERVICE**) I placed such envelopes for collection and to be mailed on this date following ordinary business practices.

[] (**BY NEXT DAY DELIVERY**) I caused to be delivered such envelope by hand to the office of the addressee.

[X] (**BY E-MAIL)** I caused said document to be transmitted to the email address(s) of the addresses(s) designated above.

[X] (**STATE**) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

[] (**FEDERAL**) I declare under penalty of perjury that I am employed by a member of the Bar of this Court, at whose direction this service is made.

Executed on October 29, 2024 at Orange, California.

Signed: _____